

		<i>Code of Civil Procedure §431.30(b)</i> states: "The answer to a complaint shall contain: (1) The general or specific denial of the material allegations of the complaint controverted by the defendant. (2) A statement of any new matter constituting a defense." Section <i>§430.20</i> states: "A party against whom an answer has been filed may object, by demurrer as provided in Section 430.30, to the answer upon any one or more of the following grounds: (a) The answer does not state facts sufficient to constitute a defense." A defendant raising new matters in an answer must allege ultimate facts sufficient to prove the defense with the same level of detail that a plaintiff is required to allege ultimate facts to support a cause of action in a complaint. (<i>FPI Development, Inc. v. Nakashima</i> (1991) 231 Cal.App.3d 367, 384.) "Generally speaking, the determination whether an answer states a defense is governed by the same principles which are applicable in determining if a complaint states a cause of action. [Citation.]" "There are, however, certain important differences between these two kinds of demurrer. An important difference is that in the case of a demurrer to the answer, as distinguished from a demurrer to the complaint, the defect in question need not appear on the face of the answer. The determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer." (<i>South Shore Land Co. v. Petersen</i> (1964) 226 Cal.App.2d 725, 733.) The Court finds that the 2nd – 6th and 12th – 16th affirmative defenses raise new matters and fail to allege sufficient facts in support thereof. Accordingly, the demurrer is SUSTAINED as to these causes of action. The Court finds that the 1st, 7th-11th, and 17th-18th causes of action do not raise new matters. The 1st cause of action does not require further facts be pled. (<i>Code of Civil Procedure §430.80.</i>) The 18th affirmative defense is merely a statement and not an affirmative defense. The remaining defenses are responses to allegations raised by the complaint and are denials of plaintiff's allegations regarding formation of the contract. Accordingly, the demurrer is OVERRULED as to these causes of action. <i>Plaintiff shall give notice.</i>
13.	Hood v. Hyundai Motor America 25-1513152	(Withdrawn)
14.	Kumar v. Children's Hospital of Orange County 23-1361438	Before the Court at present is the Motion for Summary Judgment filed on 3/12/26 by Defendant Kishan Patel, M.D. ("Patel"). The Motion is directed to the First Amended Complaint ("FAC") filed on 11/16/23 by "Arjun Kumar, a minor, by and through his Guardian Ad Litem Pavan Kumar" ("Plaintiff"). Patel was named therein as Doe 1 (ROA 59). The FAC asserts a single claim for medical negligence. On such a claim, when a defendant moves for summary judgment and supports the

		motion with an expert declaration that the defendant's conduct fell within the community standard of care, or did not cause or contribute to the injury, the defendant is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence. (<i>Hanson v. Grode</i> (1999) 76 Cal.App.4th 601, 607; <i>Munro v. Regents of University of California</i> (1989) 215 Cal.App.3d 977, 984-985; <i>Fernandez v. Alexander</i> (2019) 31 Cal.App.5th 770, 781-782.) Here, Patel has presented expert opinion provided by Dr. Gregory Hammer. (ROA 168.) Dr. Hammer therein opines that Patel acted within the standard of care in providing an epidural to Plaintiff's mother, and during his involvement in the resuscitation efforts provided to Plaintiff after delivery, and that to a reasonable medical probability, no negligent act or omission on the part of Dr. Patel led to Plaintiff's injuries. (Hammer Decl. ¶¶ 25-35.) The burden thus shifts to Plaintiff to show a deviation from the standard of care and causation as to Dr. Patel. Plaintiff has not met that burden here, as Plaintiff has offered no expert opinion to contradict the Hammer Decl. as presented with the Motion. Dr. Patel has also presented evidence to show that the Good Samaritan statutes at <i>B&P Code</i> §§2395 and 2396 squarely apply to him here, with regard to his efforts to resuscitate Plaintiff after Plaintiff's delivery. (UF 2, 3, 6-16.) Plaintiff has failed to dispute that this is so. Defendants' Motion for Summary Judgment, as to Dr. Patel, is therefore GRANTED. <i>Counsel for Defendant Patel is to give notice of this ruling.</i>
15.	Garcia v. Westcoast Tree Service, Inc. 22-1240507	Before the Court is defendant Jorge Juarez's motion for summary judgment on the complaint of Nemesio Garcia. For the reasons set forth below, the motion is DENIED. Defendants' request for judicial notice is GRANTED. (<i>Evid. Code</i> § 452, <i>subd. (d)</i>.) To establish a complete defense on a summary judgment motion, defendant must present admissible evidence of each essential element of the defense upon which it bears the burden of proof at trial. (<i>Anderson v. Metalclad Insulation Corp.</i> (1999) 72 Cal.App.4th 284, 289.) Thus, where a defense has several elements, lack of substantial evidence on any element bars relief, even if the plaintiff failed to introduce a scintilla of evidence challenging that element." (<i>Huynh v. Ingersoll-Rand</i> (1993) 16 Cal.App.4th 825, 831.) Defendant argues the workers compensation exclusivity rule bars Plaintiff's complaint. Ordinarily, when an employee sustains a worksite injury, the exclusive remedy against his or her employer is provided by the workers' compensation law, and the employer is immune from a suit for damages. (<i>Vebr v. Culp</i> (2015) 241 Cal.App.4th 1044, 1051.) An employee's injury is subject to the workers' compensation